

June 20, 2012



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 15566

EXPIRATION DATE: May 31, 2014

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Lake and Peninsula Airlines, Inc.
Port Alsworth, AK
Certificate Number: QPOC56U
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the offering for transportation in commerce of certain cylinders of compressed oxygen, when ground and vessel transportation is unavailable and no other practical means of transportation exist, without their outer packaging being capable of passing the Flame Penetration and Resistance Test and the Thermal Resistance Test. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. This special permit authorizes the transportation of cylinders of oxygen, compressed as stated in paragraphs 7-10 of this special permit, only within the State of Alaska
 - c. The safety analyses performed during the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - d. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
5. BASIS: This special permit is based on the application of Lake and Peninsula Airlines, INC dated February 10, 2012 submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Oxygen, compressed	2.2	UN1072	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Cylinders as required by § 173.302(f)(1) with a capacity of up to 281 cubic feet

b. Each cylinder:

(1) With a capacity of 116 cubic feet or less must be:

(i) Fully covered with a fire resistant blanket that is secured in place; and

(ii) Placed in a rigid outer packaging or an ATA 300 Category 1 shipping container.

(2) With a capacity of more than 116 cubic feet must be:

(i) Secured within a frame;

(ii) Fully covered with a fire resistant blanket that is secured in place; and

(iii) Fitted with a securely attached metal cap of sufficient strength to protect the valve from damage during transportation.

(3) For passenger-carrying and cargo aircraft, the transportation of cylinders of oxygen may not exceed the quantities described in the Hazardous Materials Table, 49 CFR 172.101 Column (9A).

(i) No more than two cylinders may be transported by passenger-carrying aircraft.

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8. SPECIAL PROVISIONS: A current copy of this special permit must be carried aboard each aircraft used to transport cylinders of oxygen.

9. OPERATIONAL CONTROLS:

a. Transportation under the terms of this special permit is authorized only within the state of Alaska when no other practical means of transportation exist to remote communities where ground or vessel transportation is unavailable.

b. Lake and Peninsula Airlines, Inc. is required to provide additional training regarding the function specific responsibilities of those employees involved in meeting the terms of this special permit.

c. Authorized Aircraft: The aircraft must be leased or owned and operated by Lake and Peninsula Airlines, Inc. and must be authorized by an FAA Operations Certificate.

d. This special permit applies to single-pilot aircraft that have a maximum gross take-off weight of 12,500 lbs or less.

1. Cargo-only Aircraft: The destinations served must receive cargo-only service by air operators at least once a week.

2. Passenger-carrying aircraft (with cargo, if applicable): Only those destinations that do not receive cargo-only service by air operators at least once a week.

i. No more than two cylinders of oxygen is permitted aboard any passenger-carrying flight.

e. The crewmember(s) must have access to the cylinder(s) and have at least one fire extinguisher readily available for use by the crewmember(s).

f. Any other hazardous materials transported on board the aircraft must comply with the stowage compatibility requirements of 49 CFR 175.78.

- g. Operations Manual: Operations must be conducted in accordance with the conditions and limitations specified in the certificate holder's operations manual accepted and approved by the FAA.
- h. This permit does not waive any FAA airworthiness operating requirements or the need to obtain FAA authorizations.
- i. This permit does not grant the authority to use foreign controlled airspace or airports outside the United States.
10. MODES OF TRANSPORTATION AUTHORIZED: Passenger-carrying aircraft and Cargo only aircraft.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous

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materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Burkhardt